

Mutual Confidentiality Agreement

For evaluating and discussing a potential Heutrix engagement

Heutrix	Heutrix Pty Ltd ACN / ABN: _____
Other party	_____ _____
Purpose	Evaluate and discuss: _____
Effective date	_____ _____
Version	1.0 1 August 2026

No engagement: This agreement protects information exchanged for the Purpose. It does not appoint Heutrix, require either party to proceed, approve system/data access or authorise AI use.

1. Confidential Information

Confidential Information means non-public information disclosed by or for a party in any form that is marked confidential or that a reasonable person would understand is confidential given its nature and the circumstances. It includes business plans, pricing, processes, systems, security information, product ideas, IP, client or worker information, Personal Information and the existence and content of discussions.

Confidential Information excludes information the receiving party can demonstrate was lawfully known without restriction before disclosure, independently developed without use of the information, lawfully received from a third party without restriction, or public other than through breach.

2. Permitted use and protection

- Use Confidential Information only for the Purpose.
- Disclose it only to personnel and professional advisers who need it for the Purpose and are bound by confidentiality obligations.
- Protect it with at least reasonable care and safeguards appropriate to its sensitivity.
- Do not copy, reverse engineer or analyse it beyond what is reasonably required for the Purpose.
- Promptly notify the disclosing party of known unauthorised access, use or disclosure and cooperate in reasonable containment.
- Do not place Confidential Information or Personal Information into a public AI tool or unapproved repository.

3. Personal and health information

The parties will avoid exchanging identifiable patient, participant, worker or other sensitive information during preliminary discussions. If Personal Information is genuinely required, the parties will first document the lawful purpose, authority, minimum data, approved channel, access, retention and deletion arrangements.

Each party remains responsible for Applicable Privacy Law. This agreement does not replace a project-specific Data and System Access Authorisation.

4. Legally required disclosure

If disclosure is required by law, court or regulator, the receiving party may disclose the minimum required. Where lawful and practicable, it will give prompt notice so the disclosing party can seek protection and will reasonably assist at the disclosing party's cost.

5. Return and deletion

On request or when discussions end, the receiving party will stop using and return or securely delete Confidential Information within 10 business days, except for a copy required by law or automatic backups not reasonably accessible. Retained copies remain protected and are not used for another purpose.

6. Ownership, accuracy and no commitment

Confidential Information remains the disclosing party's property. No IP licence is granted except the limited right to use it for the Purpose. Information is supplied without a promise that it is complete or accurate, except that neither party excludes responsibility for fraud or misleading conduct.

Neither party is obliged to proceed with a transaction or engagement. Any paid work, system access, deliverable, reliance or commercial commitment requires a separate signed agreement.

7. Term and survival

This agreement applies to disclosures made for three years after the Effective date. The confidentiality and use restrictions continue for five years after each disclosure. For trade secrets and Personal Information, they continue for as long as the information remains confidential or protected by law.

8. Remedies and liability

The parties acknowledge that unauthorised use or disclosure may cause harm not adequately remedied by damages, so a party may seek urgent injunctive relief. Each party remains responsible for loss it causes through breach, subject to applicable law and the general duty to mitigate.

9. General

This agreement is the entire agreement about confidentiality for the Purpose and may be changed only in writing signed by both parties. Invalid terms are read down or severed to the minimum extent required. Neither party may assign it without the other's consent, except to a successor to substantially all relevant business assets that assumes the obligations.

The agreement is governed by Victoria, Australia. The parties submit to Victorian courts. It may be signed electronically and in counterparts.

Signing

Each signatory confirms that they are authorised to bind the party named below. Signatures may be electronic and in counterparts.

Signed for Heutrix Pty Ltd	Signed for the other party
Signature: _____	Signature: _____
Name: _____	Name: _____
Position: _____	Position: _____
Date: _____	Date: _____
Email for notices: _____	Email for notices: _____